JUSTICE BARRETT, with whom THE CHIEF JUSTICE, JUSTICE KAGAN, and JUSTICE GORSUCH join, dissenting.

Twenty years ago, this Court held that the *Rooker-Feldman* doctrine is "confined" to the procedural circumstances of the two cases from which the doctrine draws its name. *Exxon Mobil Corp.* v. *Saudi Basic Industries Corp.*, 544 U. S. 280, 284, 291 (2005); see *Rooker* v. *Fidelity Trust Co.*, 263 U. S. 413 (1923); *District of Columbia Court of Appeals* v. *Feldman*, 460 U. S. 462 (1983). In "both cases," we emphasized, the federal action was brought "after the state proceedings ended." *Exxon*, 544 U. S., at 291. Seven Courts of Appeals took us at our word, refusing to apply *Rooker-Feldman* when the underlying state action remained pending.[1] They were right to hold the line. Because the Court has chosen to relax it, I respectfully dissent.

I

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Until today, this Court has applied the *Rooker-Feldman* doctrine "only twice." *Exxon*, 544 U. S., at 283. That is no accident: Because *Rooker-Feldman* stands on shaky ground, we have consciously kept its footprint small. Its rationale has gotten no firmer, so we should make the doctrine no larger.

Rooker-Feldman is a "maddeningly elusive" doctrine. B. Friedman & J. Gaylord, *Rooker-Feldman*, from the Ground

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[1] See *Federación de Maestros de Puerto Rico* v. *Junta de Relaciones del Trabajo de Puerto Rico*, 410 F. 3d 17, 24 (CA1 2005); *Hunter* v. *McMahon*, 75 F. 4th 62, 70 (CA2 2023); *Malhan* v. *Secretary United States Dept. of State*, 938 F. 3d 453, 459–460 (CA3 2019); *Miller* v. *Dunn*, 35 F. 4th 1007, 1013 (CA5 2022); *Parker* v. *Lyons*, 757 F. 3d 701, 705–706 (CA7 2014) (*per curiam*), overruled on other grounds by *Hadzi-Tanovic* v. *Johnson*, 62 F. 4th 394 (CA7 2023); *Guttman* v. *Khalsa*, 446 F. 3d 1027, 1032 (CA10 2006); *Nicholson* v. *Shafe*, 558 F. 3d 1266, 1274–1275 (CA11 2009). Until the Fourth Circuit decided today's case, only the Sixth Circuit had gone the other way. See *RLR Investments, LLC* v. *Pigeon Forge*, 4 F. 4th 380, 389–390, 396 (CA6 2021).

Up, 74 Notre Dame L. Rev. 1129, 1133 (1999). We have primarily justified it as a negative inference from 28 U. S. C. § 1257: Because Congress gave this Court appellate jurisdiction over certain state-court judgments, district courts must lack original jurisdiction to entertain a collateral attack against those judgments. See *Rooker*, 263 U. S., at 415–416; *Feldman*, 460 U. S., at 476. This Court's exercise of appellate jurisdiction, the argument runs, is "functional[ly]" equivalent to a district court's exercise of original jurisdiction over a collateral attack. *Ante*, at 681. The problem? A collateral attack is not functionally equivalent to an appeal.

Consider just a few of the differences. An appeal "removes the record into the supervising tribunal." *Cohens* v. *Virginia*, 6 Wheat. 264, 410 (1821). A collateral attack does not. See Fed. Rules Civ. Proc. 3, 7. On appeal, new evidence is generally unwelcome. See Fed. Rule App. Proc. 10; *United States* v. *Coe*, 155 U. S. 76, 83–84 (1894). In a collateral attack, new evidence is fair game. See, *e. g.*, Fed. Rule Civ. Proc. 26. Most obviously, preclusion does not apply on appeal. This Court is not barred from considering an issue just because the state high court already decided it—reconsidering the state court's judgment is the whole point. Not so with a collateral attack; preclusion restrains district courts from simply redoing the state court's work. *S*ee, *e. g.*, *Parsons Steel, Inc.* v. *First Alabama Bank*, 474 U. S. 518, 523 (1986). Finally, while this Court can vacate or reverse the judgment of the state high court and remand for further proceedings, a district court entertaining a collateral attack cannot. See 7 J. Lucas, Moore's Federal Practice ¶60.36, pp. 60–365 to 60–371 (2d ed. Cum. Supp. 1996–1997) (explaining that collateral attacks "d[o] not operate to vacate or annul the [original] judgment"). Because of the many differences between appellate jurisdiction and original jurisdiction over a collateral attack, it is doubtful that by giving this Court the former, Congress intended to deprive district courts of the latter.

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Occasionally, we have also cited 28 U. S. C. § 1331 as support for the *Rooker-Feldman* doctrine, observing that it gives district courts "original," not appellate, jurisdiction. *Rooker*, 263 U. S., at 416. This observation adds nothing—as just explained, a collateral attack is not the functional equivalent of an appeal. Besides, § 1331 cannot explain why *Rooker-Feldman* has always been limited to collateral attacks on *state*-court judgments. If entertaining a collateral attack goes beyond "original jurisdiction," then it should not matter whether the underlying judgment is from a state court or a federal one. Yet it is well settled that district courts can entertain collateral attacks on *federal* judgments—for example, an independent action for relief from a judgment to prevent a "grave miscarriage of justice." *United States* v. *Beggerly*, 524 U. S. 38, 45–47 (1998); see Fed. Rule Civ. Proc. 60(d) (Rule 60 does not limit a court's power to "entertain an independent action to relieve a party from a judgment, order, or proceeding"). It is little wonder that (at least until today) we had backed away from the § 1331 rationale.

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Beyond the difficulties of finding a statutory basis for *Rooker-Feldman*, parts of the United States Code undercut it. The doctrine is in tension, to say the least, with statutes granting district courts jurisdiction in categorical terms. Section 1331 gives district courts "original jurisdiction" over "all civil actions" presenting a federal question—not "all civil actions" presenting a federal question "minus those that attack a state-court judgment." The other jurisdictional grants are similar. See, *e. g.*, 28 U. S. C. § 1332 ("The district courts shall have original jurisdiction of all civil actions" meeting certain diversity and amount-in-controversy requirements). None has a carveout for collateral attacks.

More to the point, in trying to read between the lines of § 1257 and § 1331, *Rooker-Feldman* misses what is further down the page: Congress has *told* us how to treat state-court judgments. The Full Faith and Credit Act, 28 U. S. C.

§1738, provides that the "judicial proceedings of any court" of any State "shall have the same full faith and credit in every court within the United States . . . as they have by law or usage in the courts of such State . . . from which they are taken." In other words, federal courts "must give the same preclusive effect to a state-court judgment as another court of that State would give." *Parsons Steel*, 474 U. S., at 523.

Conceptual problems aside, it is not clear what *Rooker-Feldman* brings to the table. Preclusion already bars parties from relitigating issues and claims that were decided in state court. See, *e. g.*, *ibid.*[2] And when state litigation is ongoing, various abstention doctrines prevent federal courts from getting involved. *Younger* abstention, for example, precludes federal courts from interfering with state criminal prosecutions and certain state civil proceedings. See *Younger* v. *Harris*, 401 U. S. 37 (1971); *Sprint Communications, Inc.* v. *Jacobs*, 571 U. S. 69, 72–73 (2013); see also *Colorado River Water Conservation Dist.* v. *United States*, 424 U. S. 800, 818–821 (1976) (*Colorado River* abstention); *Railroad Comm'n of Tex.* v. *Pullman Co.*, 312 U. S. 496, 500–501 (1941) (*Pullman* abstention); *Burford* v. *Sun Oil Co.*, 319 U. S. 315, 332–334 (1943) (*Burford* abstention). Finally, the Anti-Injunction Act generally bars federal courts from enjoining state proceedings. 28 U. S. C. §2283.

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None of this is to say that *Rooker-Feldman* is inconsequential. Crucially, it is *jurisdictional*—so courts must analyze it, even if no one raises it. And because *Rooker-Feldman* lacks both a clear role and a clear rationale, it is hard to contain. After *Feldman*, the doctrine became "perhaps the primary docket-clearing workhorse for the federal courts." S. Bandes, The *Rooker-Feldman* Doctrine: Evalu-

[2] To the extent that preclusion would not bar relitigation, using *Rooker-Feldman* to do so seems to violate the Full Faith and Credit Act by giving state judgments more preclusive effect than they would have in the state courts from which they are taken. See *infra*, at 710.

ating Its Jurisdictional Status, 74 Notre Dame L. Rev. 1175 (1999). "In the process," *Rooker-Feldman* "mushroomed well beyond the § 1257 explanation that gave it birth, as the federal courts found one claim after another closely intertwined with claims raised, resolved, sometimes still pending, in the state courts." *VanderKodde* v. *Mary Jane M. Elliott, P. C.*, 951 F. 3d 397, 406 (CA6 2020) (Sutton, J., concurring).

II

A

Recognizing that things had gone awry, this Court intervened. In *Exxon*, we neutralized *Rooker-Feldman* by confining it to the procedural circumstances of the *Rooker* and *Feldman* cases. 544 U. S., at 284, 291. Our treatment of the doctrine was so devastating that one scholar penned its obituary. See S. Bray, Rooker Feldman (1923–2006), 9 Green Bag 2d 317 (2006).

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Faithfully read, *Exxon* requires us to reject the application of *Rooker-Feldman* to T. M.'s case. In *Exxon*, we lamented that lower courts had construed the doctrine "to extend far beyond the contours of the *Rooker* and *Feldman* cases." 544 U. S., at 283. We acknowledged its tension with both jurisdictional statutes like § 1331 and the Full Faith and Credit Act, observing that the doctrine risks "overriding Congress' conferral of federal-court jurisdiction concurrent with jurisdiction exercised by state courts" and "superseding the ordinary application of preclusion law pursuant to 28 U. S. C. § 1738." *Ibid.*; see *id.*, at 284. And we drew a line: *Rooker-Feldman* "is confined to cases of the kind from which the doctrine acquired its name." 544 U. S., at 284. We then identified the key features of those cases. *Id.*, at 291. Among them: In "both" *Rooker* and *Feldman*, the losing party sued in federal court "*after the state proceedings ended.*" 544 U. S., at 291 (emphasis added).

This limitation flows directly from *Exxon*'s logic. *Exxon* confines *Rooker-Feldman* to cases like *Rooker* and *Feldman*

for a reason: Those two cases "exhibit the limited circumstances in which this Court's appellate jurisdiction over state-court judgments" under § 1257 "precludes a United States district court from exercising subject-matter jurisdiction in an action it would otherwise be empowered to adjudicate under a congressional grant of authority, *e. g.*, § 1330 (suits against foreign states), § 1331 (federal question), and § 1332 (diversity)." 544 U. S., at 291. This Court's appellate jurisdiction is limited to "final judgments or decrees rendered by the highest court of a State in which a decision could be had." § 1257(a). If there is no final judgment from a state high court, § 1257 does not confer jurisdiction in this Court; thus, there is nothing to "preclud[e]" district courts from exercising the jurisdiction they would "otherwise" have. *Id.*, at 291.

Here, the state proceedings have not "ended." T. M.'s original action is still pending in a Maryland appellate court. See *ante*, at 674. So this case falls outside the narrow confines in which *Rooker-Feldman* continues to operate, and the District Court had jurisdiction. See *Exxon*, 544 U. S., at 291.

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B

Rather than hew to this straightforward analysis, the Court reshapes *Rooker-Feldman*. It does so by both retreating to the old (the § 1331 rationale that *Exxon* discarded) and inventing the new (a grab bag of policy reasons for disregarding § 1257's finality requirement). This reconception of *Rooker-Feldman* leaves the doctrine worse off.

The Court's first mistake is failing to believe that *Exxon* means what it says. The Court acknowledges that *Exxon* limits *Rooker-Feldman* to " 'cases of the kind from which the doctrine acquired its name.' " *Ante*, at 678 (quoting *Exxon*, 544 U. S., at 284). But it ignores that *Exxon* identifies the defining features of those cases and specifically notes that "both" had been filed "after the state proceedings ended." 544 U. S., at 291; see *Skinner* v. *Switzer*, 562 U. S. 521, 531

(2011) (reiterating that *Rooker* and *Feldman* were filed "after the state proceedings ended"). Almost every circuit has recognized the significance of this language. See n. 1, *supra*. This Court dismisses it in a footnote. *Ante*, at 678, n. 5.

To justify giving *Rooker-Feldman* a broader sweep, the Court resurrects a rationale that *Exxon* buried: § 1331. Before *Exxon*, we had cited § 1331 as a secondary rationale for the doctrine, see *supra*, at 704; according to the Court, *Exxon* continues the thread, see *ante*, at 681. That is a very ambitious reading of *Exxon*.[3] Rather than describing *Rooker-Feldman* as a negative inference from § 1331, *Exxon* portrays it as a negative inference from § 1257 that *overrides* § 1331. As *Exxon* summarizes: *Rooker-Feldman* describes when this Court's appellate jurisdiction "precludes" district courts from exercising the jurisdiction they would "otherwise" have. 544 U. S., at 291. The Court protests that if *Exxon* had intended to discard the § 1331 rationale, it would have said so. See *ante*, at 683. But the Court does not even mention this language—*Exxon*'s only explanation of the doctrine's rationale—much less explain why it does not suffice. And our more recent *Rooker-Feldman* cases confirm that *Exxon* tossed the § 1331 justification. These cases present *Rooker-Feldman* as a "strict negative inference from § 1257," *ante*, at 684, and do not mention § 1331 at all. See *Skinner*, 562 U. S., at 531–532 (explaining *Rooker-Feldman* solely as an inference from § 1257); *Lance* v. *Dennis*, 546 U. S. 459, 463 (2006) (*per curiam*) (same).

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Yet even as it resuscitates the § 1331 rationale, the Court acknowledges that § 1257 remains in the mix. *Ante*, at 677–678 (describing *Rooker-Feldman* as "built" on both § 1331 and § 1257). And by recognizing that the doctrine applies only

[3] The Court relies on a quotation from a footnote in another case that *Exxon* includes in a parenthetical, treating that language as if it were *Exxon*'s own explanation of the doctrine. See *ante*, at 681. Obviously, a stray citation does not override the thrust of *Exxon*'s logic.

to "*state*-court judgments," *ante*, at 672 (emphasis added), the Court tacitly admits that § 1257—not § 1331—is what really determines when *Rooker-Feldman* kicks in. Still, the Court's embrace of § 1257 is only partial: It is unwilling to accept § 1257's requirement of a "[f]inal judgment" from the "highest court of a State." The Court's main reason for disregarding this limit appears to be *Exxon*, but as explained, *Exxon* compels the opposite conclusion.

Perhaps recognizing that its new approach to § 1257 requires some other rationale, the Court spends several pages running through various policy considerations. Applying § 1257's finality limit, the Court says, would generate "anomalous outcomes," disrespect "federalism," and sow "confusion." *Ante*, at 684, 688. Its theory is an innovation, but not an improvement.

Take "anomalous outcomes." The Court reasons that it is "difficult to see why Congress would have authorized district courts to review final state-court judgments pending appeal in state court when it did not authorize this Court to do so." *Ante*, at 685. But the Court's approach also yields "anomalous outcomes." To give one example: As the Court concedes, the doctrine applies only to "'state-court judgments'"; it does not bar district courts from reviewing state-court interlocutory orders. *Ante*, at 672 (quoting *Exxon*, 544 U. S., at 284). Yet it is similarly "difficult to see why Congress would have authorized district courts" to review interlocutory orders subject to further review in state court "when it did not authorize this Court to do so." *Ante*, at 685. The Court's approach cannot answer this question, but mine can: *Rooker-Feldman* allows for this result because it is rooted in § 1257, not in a vague notion of which outcomes are "anomalous."

The Court also insists that "[f]ederalism principles are . . . best served" by applying *Rooker-Feldman* to dismiss T. M.'s challenge. *Ante*, at 686. But the word "federalism" does not appear in either *Rooker* or *Feldman*. And if it were true that general concerns about federalism animate the doctrine,

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Exxon would have come out the opposite way. The lower court in *Exxon* applied *Rooker-Feldman* in part because the federal suit was "an 'insurance policy' against an adverse result in state court"—a clear affront to federalism. 544 U. S., at 294, n. 9 (quoting 364 F. 3d 102, 105–106 (CA3 2004)). We dismissed that line of reasoning in a footnote, explaining that there is "nothing necessarily inappropriate" about "a protective action." 544 U. S., at 294, n. 9. If federalism drives *Rooker-Feldman*, the *Exxon* Court missed the memo.

Even if federalism were a solid rationale, it is doubtful that "[f]ederalism principles are . . . best served by" dismissing T. M.'s challenge. *Ante*, at 686. Like other States, Maryland has adopted preclusion rules to determine when parties may relitigate issues and claims decided in a prior case. The District Court determined that T. M.'s lawsuit is not "precluded" under Maryland law—which means that T. M. could have filed a suit just like this one in a Maryland state court. Letter Order in No. 1:23–cv–1684 (D Md.), ECF Doc. 27, pp. 2–3. Yet the Court maintains that bouncing her suit from federal court best serves federalism. Why? Wouldn't Maryland's interests be best served by affording its judgments the effect they would have under state law?

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In any event, Congress has already made the federalism calculus, and this Court is not free to override it. As *Exxon* recognizes, the Full Faith and Credit Act—which the Court does not mention—requires federal courts to give state judgments the effect that they would have in state courts. 544 U. S., at 293; see *Lance*, 546 U. S., at 466 ("Congress has directed federal courts to look principally to *state* law in deciding what effect to give state-court judgments"). So even if the Court could otherwise ignore state law in the name of federalism, Congress has foreclosed that path.

Grounding *Rooker-Feldman* in federalism is also at odds with our abstention doctrines, which already account for friction between state and federal courts but do not apply here. We have purposefully kept these doctrines narrow, stressing

that district courts have a "virtually unflagging obligation . . . to exercise the jurisdiction given them." *Colorado River*, 424 U. S., at 817. "[O]nly exceptional circumstances justify a federal court's refusal to decide a case in deference to the States." *New Orleans Public Service, Inc.* v. *Council of City of New Orleans*, 491 U. S. 350, 368 (1989). No one argues that T. M.'s challenge fits within those "exceptional circumstances." Nonetheless, the Court repackages the same principle—"deference to the States"—as a reason why the District Court lacked jurisdiction in the first place. See *ante*, at 684–685. It is ironic that in the Court's view, federalism concerns that are too weak to trigger abstention doctrines are strong enough to deprive district courts of jurisdiction altogether. Cf. *Exxon*, 544 U. S., at 284 (outside the circumstances of *Rooker* and *Feldman*, *Rooker-Feldman* doctrine "does not . . . augment the circumscribed doctrines that allow federal courts to stay or dismiss proceedings in deference to state-court actions").

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The Court's reliance on federalism also sits uneasily with the fact that T. M.'s suit arises under 42 U. S. C. § 1983. Section 1983 was the "product of a vast transformation from" traditional "concepts of federalism." *Mitchum* v. *Foster*, 407 U. S. 225, 242 (1972). Its "very purpose" was "to interpose the federal courts between the States and the people, as guardians of the people's federal rights—to protect the people from unconstitutional action under color of state law, 'whether that action be executive, legislative, or judicial.'" *Ibid.* (quoting *Ex parte Virginia*, 100 U. S. 339, 346 (1880)). Given our longstanding interpretation of § 1983, it is odd to cite federalism as grounds for dismissing a § 1983 suit. Cf. J. Beermann, Comments on *Rooker-Feldman* or Let State Law Be Our Guide, 74 Notre Dame L. Rev. 1209, 1230–1231 (1999). Notably, we have construed the Anti-Injunction Act—which normally bars federal courts from enjoining state-court proceedings—to contain an exception for § 1983 suits like T. M.'s. See *Mitchum*, 407 U. S., at 242–243.

Finally, the Court insists that drawing the line at finality would "needlessly complicate the *Rooker-Feldman* analysis" because "[i]t is not always straightforward to determine whether a given state-court judgment is a reviewable final judgment under § 1257(a)." *Ante*, at 687. But the line must be drawn somewhere, and there is no reason to think that drawing it at "judgment," as the Court does, is any more manageable. We apply the finality test with little trouble; surely lower courts can do the same.

* * *

The upshot of today's decision is that the Court has muddied waters that were hardly clear to begin with. That is unfortunate, because there was a better path available: treating *Rooker-Feldman* as "the § 1257 Rule." *VanderKodde*, 951 F. 3d, at 409 (Sutton, J., concurring). Doing so would have been both clearer and more faithful to *Exxon*.

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Still, the news is not all bad. Although the Court expands *Rooker-Feldman* beyond *Exxon*'s line, it repeatedly emphasizes that the doctrine is "narrow." See *ante*, at 672, 678, 679, 688. Courts should not lose sight of that message. In the end, *Rooker-Feldman* has been given an inch—it should not be allowed to take a mile.